

E8 Funding LLC – Terms of Service

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E8 FUNDING LLC TERMS OF SERVICE

Effective Date: 11/03/2025

Please read the Terms of Service carefully before you start to use the Platform. THESE TERMS OF SERVICE INCLUDE MANDATORY ARBITRATION AND A CLASS ACTION WAIVER. By using the Platform or by clicking to accept or agree to the Terms of Service when this option is made available to you, you accept and agree to be bound and abide by these Terms of Service, and all rules and policies posted on the Platform, including the FAQs, ESPA, our Privacy Policy. If you do not want to agree to these Terms of Service, you must not access or use the Platform.

1. ACCEPTANCE OF TERMS

1.1 Binding Agreement. These Terms of Service ("Terms") constitute a legally binding agreement between you ("you," "your," or "Participant") and E8 Funding LLC ("E8," "Company," "we," or "us"). By accessing, registering, or using the E8 Platform, website, or any related services (collectively, the "Platform"), you agree to be bound by these Terms, as well as our Educational Simulation Participant Agreement ("ESPA") and Privacy Policy. If you do not agree to these Terms, do not use or access the Platform.

1.2 Age and Authority. By accepting these Terms, you represent and warrant that you are at least eighteen (18) years of age, or the legal age of majority in your jurisdiction, and that you have the full legal capacity and authority to enter into and be bound by this agreement on behalf of yourself or any entity you represent.

1.3 Digital Acceptance and Electronic Signature. You acknowledge that your use of the Platform constitutes your electronic signature, which has the same legal force and effect as a handwritten signature. You further acknowledge and agree that: (a) You affirmatively consent to the use of electronic agreements and records; (b) You understand and accept the binding nature of digital clickwrap agreements; (c) You are responsible for reviewing these Terms prior to acceptance.

1.4 Updates and Continued Use. E8 may modify these Terms from time to time. All changes are effective immediately upon posting to the Platform unless otherwise stated. Your continued use of the Platform after such modifications constitutes your acceptance of the revised Terms. It is your responsibility to review these Terms regularly for updates.

2. EDUCATIONAL AND SIMULATED PURPOSE DISCLAIMER

2.1 Educational Use Only. The E8 Platform is designed solely for educational, training, and skill-development purposes. It provides users with access to a simulated trading environment that mirrors market conditions for the purpose of personal learning, behavioral modeling, and data analysis. The Platform is not intended for speculative use or investment decision-making.

2.2 No Financial, Investment, or Trading Advice. E8 does not provide any financial, investment, tax, legal, or trading advice. Nothing on the Platform constitutes a recommendation or endorsement of any strategy, product, or security. You acknowledge that: (a) No content on the Platform shall be construed as a solicitation or promotion of securities or investment services; (b) E8 is not a broker-dealer, investment advisor, or regulated financial entity under any jurisdiction; (c) Any decisions you make based on your simulated performance are solely your responsibility.

2.3 Simulated, Not Real-World, Trading. All activity on the Platform occurs in a virtual environment and does not involve the execution of actual trades or financial transactions. Any simulated gains or losses: (a) Are not real and do not reflect actual market execution, liquidity, or slippage; (b) Are generated by synthetic mechanisms within the Platform; (c) Do not create any right or claim to actual financial performance.

2.4 No Performance Guarantee. E8 makes no warranties or representations regarding: (a) The accuracy, completeness, or realism of any simulated results; (b) Your ability to replicate such results in real-world trading; (c) The fitness of the Platform for your specific educational or strategic goals.

2.5 Risk Acknowledgment. By using the Platform, you acknowledge and agree that: (a) Simulated trading carries unique risks, including overfitting, hindsight bias, and unrealistic expectations; (b) E8 shall not be liable for any decisions you make based on simulated performance or Platform content; (c) Participation is entirely voluntary and does not create any entitlement to future rewards, benefits, or market success.

3. ACCOUNT REGISTRATION AND IDENTITY VERIFICATION

3.1 Account Registration Requirements. To access the Platform, you must register for an account by providing accurate, current, and complete information.

You agree to update your account information promptly if any details change. E8 reserves the right to deny or revoke access at its sole discretion. 3.2 Identity Verification and KYC Obligations. You agree to comply with all identity verification procedures required by E8, including Know Your Customer (KYC) protocols. This may include submission of: (a) Government-issued photo identification; (b) Proof of residential address; (c) Biometric confirmation or device-level authentication; (d) Additional documentation as deemed necessary to verify your identity or prevent fraud. Participant authorizes E8 and its third-party service providers to collect, process, and verify such data in accordance with applicable law and E8's Privacy Policy. 3.3 Ongoing Compliance. E8 may periodically request updated verification documents to maintain compliance with applicable laws or internal policy. Refusal to cooperate may result in suspension, limitation, or termination of access to the Platform. 3.4 One Account Per User. Each Participant is permitted to register and maintain only one (1) Platform account unless expressly authorized in writing by E8. Sharing, renting, selling, or otherwise permitting third-party use of your account credentials is strictly prohibited. 3.5 Security and Unauthorized Access. You are responsible for maintaining the confidentiality of your login credentials. You agree to immediately notify E8 of any unauthorized use or suspected breach. E8 is not liable for any loss resulting from unauthorized access to your account caused by your failure to safeguard your credentials. 3.6 Geographic Restrictions. The owner of the Platform is based in the State of Texas in the United States. We make no claims that the Platform or any of its content is accessible or appropriate outside of the United States. Access to the Platform may not be legal by certain persons or in certain countries. If you access the Platform from outside the United States, you do so on your own initiative and are responsible for compliance with local laws.

4. FEES, PAYMENTS & REFUND POLICY 4.1 Fee Structure and Disclosure. While we offer portions of the services for free, we do charge for certain features and content. By registering for the Platform, you agree to pay all applicable fees associated with your selected program, module, or evaluation path. Fees are clearly disclosed prior to purchase and are denominated in U.S. Dollars (USD), unless otherwise stated. Fees may vary depending on the tier selected, market type (e.g., Forex, Futures, Crypto), or promotional pricing. 4.2 No Refund Policy. All fees paid to E8 are non-refundable under any circumstance, including but not limited to: (a) Failure to complete or pass an evaluation module; (b) Voluntary cancellation of your account; (c) Disqualification for breach of the Terms or ESPA; (d) Dissatisfaction with Platform tools, simulations, results, or updates; (e) Inability to access services due to failed KYC verification or geographic restriction. You acknowledge and agree that once your access to the Platform has been activated, the educational services are deemed fully delivered, and no refunds, chargebacks, or reversals shall be issued or honored. 4.3 Charge Authorization. By submitting payment information, you authorize E8 and its third-party payment processors to charge your designated payment method for all applicable fees. You represent and warrant that: (a) You are authorized to use the payment method provided; (b) You will not initiate any chargeback or reversal unless unauthorized use has occurred; (c) You understand and agree that attempted reversals may result in permanent account termination, legal enforcement, and data invalidation. 4.4 Credit Card and Billing Disputes. All billing concerns or disputes must be directed to support@EMarkets.com prior to initiating a chargeback through your card issuer. Filing a chargeback without first attempting to resolve the issue with E8 is a material breach of this Agreement. You agree that E8 may present these Terms and your transaction history as evidence in any billing dispute. 4.5 Service Activation and Delivery Confirmation. Platform access and educational service delivery are considered complete when your account is activated, and you are granted access to evaluation modules or dashboards, regardless of whether you subsequently access or complete the program. 4.6 Modification of Fees. E8 reserves the right to change its fee structure at any time, including pricing for new or existing features, program tiers, or promotional offers. Such changes will apply prospectively and will not affect payments already received. If you sign up for any automatically renewing subscriptions, you may terminate your subscription prior to the next renewal term and you will be responsible for all payment of the then applicable term.

5. PAYOUT AWARDS 5.1 Proof of Eligibility. In the event you have been accepted to the E8 Trader program where you may earn payout awards related to performance, these terms regarding payment and withdrawals apply. Before receiving any payment from E8, E8 shall require that you provide documentation or proof of eligibility and compliance with an applicable E8 Trader agreement. If you, the E8 program participant, fail to provide requested documentation, or if E8 otherwise determines in its sole discretion that you do not meet the eligibility requirements or are not in compliance with the agreements, E8 reserves the right to terminate your account and withhold or revoke the awarding of any payout awards associated with such account. 5.2

Withdrawals. You may withdraw awards by using the "withdrawal" option on the Platform. To do, you will be requested to provide appropriate tax forms, forms of identification including but not limited to a driver's license, proof of residence, payment information, or any information relating to payment accounts as reasonably requested by E8 in order to complete the withdrawal of payout awards. E8 is not liable for any incorrect money transactions in case you have provided wrong wallet or banking information. Failure to comply with this requirement may result in disqualification and forfeiture of any payout. Disqualification or forfeiture of any payout may also occur if it is determined that a participant did not comply with the agreements in any manner as determined by E8 in its sole discretion. Withdrawal requests may be made in USD, USD Coin (USDC), Tether (USDT), Bitcoin, and Ethereum. Payments in USD: Wire and ACH payment may be made to the banking account you provide to us and shall be processed within 7 days. Payments in USDC, USDT, Bitcoin, and Ethereum: Upon your request, E8 shall make payments to you in USDC, USDT, Bitcoin, or Ethereum. Cryptocurrency payments may be made to the cryptocurrency wallet you provide to us and shall be processed with 7 days. Payout awards to be paid in cryptocurrency shall be based on the then current price with Coinbase Exchange. The price you will see for converting your payout award will only be valid for a limited time. If you choose for your payout to be paid in cryptocurrency, once you confirm the payout award conversion, your transaction is not reversible. If you provide incorrect wallet information and the payment has been made, the payment will be deemed forfeited by you due to the provision of incorrect account information.

5.3 Reservation of Distribution. In the event that the awarding of any payout is challenged by any legal authority, E8 reserves the right in its sole discretion to determine whether or not to distribute the payout.

5.4 TAXES. All taxes associated with the receipt of any payout award are your sole responsibility. You consent to receive your E8 related tax information, including, without limitation, Forms 1099, electronically, which information will be securely hosted by E8 and accessible by you through your account page for at least seven (7) calendar years following the year to which the information relates. Your consent to receive tax information electronically will be effective until withdrawn. Your electronic tax information will be furnished on a downloadable PDF, which you should be able to access and print using a standard PDF reader (such as Adobe Acrobat Reader) on a computer or mobile device. You may contact E8 at Support@E8Funding.com if you cannot access your electronic tax information or to request a paper copy of your tax information. In the event you do not consent to receive your tax information electronically, you must notify E8 at support@E8Funding.com, and a paper copy will be provided. If you wish to revoke your consent to receive your tax information electronically, you may do so at any time by contacting E8 at support@E8Funding.com to arrange for all of your post-revocation tax information to be provided to you in paper form. In order to update your contact information, you may edit it within your account or request changes by emailing E8 at support@E8Funding.com.

6. EVOLVING PLATFORM AND DATA FEEDS

6.1 Community-Driven Development. The E8 Platform operates on a community-informed model that evolves based on collective data inputs, performance patterns, and behavioral analytics generated by its global user base. The features, simulations, tools, and evaluation modules offered may change dynamically in response to aggregated insights and strategic data modeling.

6.2 No Guarantee of Feature Continuity. You acknowledge and agree that E8 may modify, update, suspend, or discontinue any feature, module, evaluation structure, dashboard interface, trading simulator, or performance metric at any time, without notice. E8 is under no obligation to continue supporting any historical version, and no user shall have any vested rights in prior offerings.

6.3 Synthetic, Proprietary, and Licensed Data Feeds. E8 reserves the right to use a combination of proprietary, licensed, synthetic, delayed, anonymized, or emulated data feeds for purposes of simulation. You acknowledge that: (a) E8 is not obligated to replicate real-time market feeds; (b) Data feeds may change without notice based on cost, licensing terms, strategic shifts, or platform integrity goals; (c) Any simulation-based outcome may be impacted by such changes, and shall not be interpreted as indicative of real-world tradeability; (d) No warranty is made regarding the accuracy, timeliness, or completeness of data feeds, and E8 disclaims any liability for decisions made in reliance on such information.

6.4 Experimental Modules and Early Access Features. From time to time, E8 may release experimental modules, beta environments, or early-access tools that are in development. Such tools may be modified, suspended, or terminated without notice, and you agree to use them at your own discretion and risk.

6.5 No Grandfathering or Legacy Rights. You agree that access to any Platform feature is not permanent and may be removed or replaced at E8's discretion. E8 may modify or eliminate features retroactively, and no user shall have a claim to prior functionality, pricing, payout structure, or simulation logic.

7. COMMUNITY DATA AND PERFORMANCE LICENSING

7.1 Data Generation and Participation. By using the Platform, you acknowledge and agree that all user actions - including but not limited to trading simulations, strategy selection, behavioral inputs, decision timing, and outcome tracking - may be captured as part of the Platform's data framework. This data is used to enhance evaluation standards, optimize the Platform, and inform E8's modeling strategies.

7.2 License Grant. Participant grants E8 an irrevocable, perpetual, worldwide, royalty-free, transferable, and sublicensable license to access, analyze, aggregate, derive, commercialize, and otherwise use any and all data generated through Participant's use of the Platform, without further notice or consent. This includes use for: (a) Performance benchmarking; (b) Community analytics and trends; (c) Algorithmic testing and modeling; (d) Educational content development; (e) Licensing for internal or external applications.

7.3 No Expectation of Compensation. Submission of data through the Platform does not entitle the Participant to compensation, revenue share, performance royalties, or attribution of any kind unless otherwise explicitly agreed to in writing under a separate data acquisition or licensing agreement. Participant waives any right to assert ownership, residuals, or unjust enrichment claims based on their data contributions.

7.4 Data Integrity and Eligibility for Rewards. E8 reserves the right to assess the integrity, consistency, and originality of submitted performance data. Only data meeting E8's internal quality, authenticity, and behavioral thresholds - as determined by E8's Risk and Compliance Team - may be considered eligible for reward consideration as described in the ESPA. Data found to be generated through manipulation, automation, collusion, or gaming of Platform features will be invalidated and may result in account termination.

7.5 Aggregated and Anonymized Use. All community-driven data may be aggregated and anonymized for the purpose of producing research, publishing insights, or powering third-party analytics engines. Personally identifiable information ("PII") shall not be included unless separately and explicitly authorized by the Participant. For a complete explanation of how PII is handled, please refer to our Privacy Policy.

8. INTELLECTUAL PROPERTY The Platform and its entire contents, features and functionality (including but not limited to all information, software, text, displays, images, video and audio, and the design, selection and arrangement thereof), are owned by E8, its licensors or other providers of such material and are protected by United States and international copyright, trademark, patent, trade secret and other intellectual property or proprietary rights laws. These Terms permit you to use the Platform for your personal, non-commercial use only. You must not reproduce, distribute, modify, create derivative works of, publicly display, publicly perform, republish, download, store or transmit any of the material on the Platform.

9. PROHIBITED CONDUCT

9.1 Prohibited Activities. To preserve the integrity, educational purpose, and operational reliability of the Platform, you agree not to engage in any of the following activities: (a) Using bots, scripts, crawlers, automation software, or AI agents to interact with or manipulate the Platform; (b) Circumventing, bypassing, or exploiting evaluation parameters, reward systems, drawdown thresholds, or simulation logic; (c) Misrepresenting your identity, location, credentials, or intent to gain access or advantage; (d) Creating multiple accounts without prior written authorization from E8; (e) Sharing, selling, or transferring your account credentials to any third party; (f) Attempting to reverse-engineer, decompile, or disassemble any part of the Platform; (g) Uploading, transmitting, or deploying any malware, viruses, or malicious code; (h) Posting, publishing, or sharing defamatory, misleading, or harmful content about E8, its personnel, users, partners, or technology; (i) Using the Platform in any manner that violates applicable law, regulation, or E8's internal policies. Additionally, you agree not to use automated means including, without limitation, bots, scripts, artificial intelligence, programs, parser, spiders, screen scrapers tools, or applications, to interact with the Platform or services, including, without limitation, to collect any information or content from the Platform, to automatically process Platform activities, to monitor or copy any of the material on the Platform.

9.2 Investigations and Enforcement. E8 reserves the right to investigate any suspected or alleged violation of these Terms. Investigations may include review of your account activity, data logs, communications, and associated identifiers. E8 may, at its sole discretion: (a) Suspend or terminate your account; (b) Invalidate your performance data and deny any pending or future rewards; (c) Take legal action or refer the matter to regulatory or law enforcement agencies; (d) Seek damages, injunctive relief, or any other remedies permitted by law.

9.3 Non-Circumvention. You agree not to attempt to access the Platform or participate under a different name or account following termination or suspension. Any such attempt shall constitute a material breach and may result in legal action.

9.4 Platform Abuse Reporting. If you become aware of any prohibited conduct or security vulnerabilities, you agree to report such information promptly to security@EMarkets.com. Failure to report

known abuse may be deemed a violation of these Terms. Good-faith reports will be kept confidential to the extent permitted by law.

10. INDEMNIFICATION, DISCLAIMERS, AND LIMITATION OF LIABILITY

10.1 Indemnification. You agree to defend, indemnify and hold harmless E8, its affiliates, licensors and service providers, and its and their respective officers, directors, employees, contractors, agents, licensors, suppliers, successors and assigns from and against any claims, liabilities, damages, judgments, awards, losses, costs, expenses or fees (including reasonable attorneys' fees) arising out of or relating to your violation of these Terms or your use of the Platform.

10.2 Platform "As-Is" Disclaimer. The Platform, including all content, modules, data feeds, evaluations, simulations, dashboards, and features, is provided on an "as-is" and "as-available" basis without warranties of any kind, express or implied. To the maximum extent permitted by applicable law, E8 disclaims all warranties, whether statutory, express, or implied, including but not limited to: (a) Implied warranties of merchantability, fitness for a particular purpose, and non-infringement; (b) Any warranties regarding uptime, reliability, performance, or system availability; (c) Any warranty that the Platform will be error-free, secure, uninterrupted, or produce any particular outcome.

10.3 Educational Use Risk Assumption. Participant acknowledges and agrees that use of the Platform is at their sole risk. E8 does not warrant that use of simulated trading environments or community analytics will lead to improved skills, real-world opportunities, or replicable outcomes. All use is voluntary and educational in nature.

10.4 Limitation of Liability. To the fullest extent permitted by law, in no event shall E8 or its affiliates, officers, directors, employees, agents, licensors, service providers, or contractors be liable for any indirect, incidental, consequential, special, exemplary, or punitive damages, including but not limited to loss of profits, data, revenue, goodwill, or business interruption, arising out of or related to: (a) your use or inability to use the Platform; (b) errors, omissions, delays, or data loss in the Platform or its content; (c) simulated outcomes, reward expectations, or evaluation results; (d) suspension or termination of your access; (e) any unauthorized access or use of the Platform by a third party.

10.5 Liability Cap. E8's total aggregate liability for any claim under these Terms or related to your use of the Platform shall not exceed the amount paid by you to E8 in the six (6) months preceding the claim. This limitation shall apply regardless of the form of action, whether in contract, tort, negligence, strict liability, or otherwise. Some jurisdictions do not allow certain exclusions or limitations of liability; in such cases, liability shall be limited to the maximum extent permitted by applicable law.

11. CONSENT TO COMMUNICATION AND MARKETING

11.1 Operational Communications. By registering for and using the Platform, you consent to receive transactional and administrative communications from E8 via email, SMS, mobile push notifications, phone calls, or in-app alerts. These communications may include notifications about account activity, system changes, security alerts, and other service-related matters.

11.2 Marketing Communications. You also consent to receive promotional materials, offers, updates, and newsletters from E8 via electronic channels. These communications may relate to new services, reward programs, referral campaigns, feature updates, or educational content. You may opt out of non-essential promotional communications at any time by following the unsubscribe instructions included in each message or by contacting support@EMarkets.com. Opting out does not affect your receipt of essential service notifications.

11.3 International Compliance. All communications will be conducted in compliance with applicable international regulations, including the United States CAN-SPAM Act, the European Union's General Data Protection Regulation (GDPR), the United Kingdom's Privacy and Electronic Communications Regulations (PECR), and other local laws.

11.4 Consent to Use of Telephone and SMS. You consent to E8 and its service providers contacting you via telephone or SMS at the number provided during registration or otherwise submitted to the Platform, including for authentication, compliance, support, or promotional purposes. Message and data rates may apply. You may revoke SMS consent by replying STOP or by contacting support@EMarkets.com.

11.5 Third-Party Tools and Consent Recordkeeping. E8 may utilize third-party communication tools and consent-management software to manage your preferences, track opt-outs, and store evidence of affirmative consent. You agree that E8's records of such consents shall be deemed sufficient and binding in any dispute regarding authorization.

12. TERMINATION AND SUSPENSION

12.1 Termination by Participant. You may terminate your account and cease use of the Platform at any time by submitting a written request to support@EMarkets.com. Termination shall not entitle you to any refund of fees paid, nor shall it affect E8's rights with respect to previously generated data, account activity, or simulation records.

12.2 Termination by E8. E8 may suspend or terminate your access

to the Platform, with or without notice, at its sole discretion, for any reason including but not limited to: (a) Violation of these Terms, the ESPA, or any applicable law; (b) Fraudulent, abusive, or manipulative behavior; (c) Non-cooperation with KYC/AML verification procedures; (d) Prolonged account inactivity; (e) Conduct deemed to damage E8's operations, reputation, or legal standing. 12.3 Effects of Termination. Upon termination, your access to the Platform will be revoked, and your simulation progress, account settings, and historical activity may be permanently deleted. E8 reserves the right to retain anonymized or de-identified data for analytics, compliance, or auditing purposes. No portion of such retained data shall be deemed personally identifiable unless separately authorized under our Privacy Policy. 12.4 No Waiver of Rights. Termination shall not waive or release either party's accrued obligations or liabilities arising prior to the date of termination, including payment obligations, indemnification duties, or rights under any applicable data license. All such provisions shall survive termination of this Agreement. 12.5 Reinstatement. Reinstatement of a terminated account is not guaranteed. E8 may, in its sole discretion, consider requests for reinstatement and may impose additional conditions including re-verification, additional fees, or limited functionality. Any decision by E8 to reinstate an account shall not constitute a waiver of prior breaches or preclude enforcement of these Terms with respect to past conduct.

13. CHANGES TO TERMS AND PLATFORM 13.1 Right to Modify Terms. E8 reserves the right, in its sole discretion, to update, amend, or revise these Terms at any time. Any such changes will become effective immediately upon posting to the Platform, unless otherwise stated. Your continued use of the Platform after any such update constitutes your binding acceptance of the modified Terms. 13.2 Notice of Material Changes. E8 may, but is not obligated to, notify users of material changes to these Terms via email, in-app messaging, or account dashboards. You are responsible for regularly reviewing the Terms for updates. 13.3 Program and Feature Changes. E8 may modify, replace, discontinue, or add any feature, program structure, evaluation module, dashboard interface, reward policy, or data feed type, with or without prior notice. Changes may apply to existing users and are not limited to prospective participants. 13.4 No Vested Rights in Features or Offerings. You acknowledge and agree that participation in the Platform does not create any vested rights or entitlements to specific features, payout tiers, historical pricing, reward models, or performance analytics. E8 may eliminate or restructure such elements at any time without liability. 13.5 Incorporation of Updated Terms. Revised versions of these Terms shall supersede all prior versions. Continued access or use of the Platform following the effective date of updated Terms shall be deemed conclusive acceptance thereof. If you do not agree to the updated Terms, you must immediately cease all use of the Platform.

14. INCORPORATION OF ESPA & PRIVACY POLICY 14.1 Binding Incorporation by Reference. Your access to and use of the Platform is governed not only by these Terms of Service, but also by the E8 Educational Simulation Participant Agreement ("ESPA") and the E8 Privacy Policy, both of which are hereby incorporated by reference as if fully set forth herein. 14.2 Governing Hierarchy. In the event of a conflict or inconsistency between the ESPA and these Terms, the provisions of the ESPA shall govern and control. In the event of a conflict between the Privacy Policy and these Terms, the Privacy Policy shall govern solely with respect to data protection, privacy rights, and data handling practices. 14.3 Availability and Updates. The ESPA and Privacy Policy are made available through the Platform and are subject to change in accordance with their respective terms. You are responsible for reviewing all such documents regularly. Continued use of the Platform after any update constitutes your acceptance of the modified version. 14.4 Independent Review Recommended. You are encouraged to review the ESPA and Privacy Policy carefully and consult with legal counsel before engaging with the Platform. Participation implies full understanding and acceptance of all incorporated policies and agreements.

15. GOVERNING LAW AND DISPUTE RESOLUTION 15.1 Governing Law. These Terms, and any dispute, claim, or controversy arising out of or related to them or the Platform, shall be governed by and construed in accordance with the laws of the State of Texas, United States, without regard to its conflicts of law principles. 15.2 Arbitration Agreement. Any dispute, claim, or controversy between you and E8 arising out of or relating to these Terms or your use of the Platform - including but not limited to its formation, breach, termination, enforcement, interpretation, or validity - shall be resolved by binding arbitration administered by the American Arbitration Association (AAA) in accordance with its Commercial Arbitration Rules. 15.3 Arbitration Opt-Out. You can elect to reject the agreement to arbitrate by sending us a written opt-out notice ("Opt-Out Notice") within thirty (30) days following the date you first agree to these terms by email at Support@E8Funding.com. To be effective, the opt-out notice must contain your name, address, and signature. If you opt-out of the agreement to

arbitrate, all other parts of these Terms will continue to apply to you. Opting out of this agreement to arbitrate has no effect on any previous, other, or future arbitration agreements that you may have with us. 15.4 Venue and Forum. The exclusive venue for arbitration shall be Dallas County, Texas. If arbitration is not enforceable under applicable law, the parties irrevocably submit to the exclusive jurisdiction and venue of the state and federal courts located in Dallas County, Texas. 15.5 Waiver of Class and Jury Rights. You irrevocably waive: (A) any right to a trial by jury; (B) any right to participate in a class action, class arbitration, or representative proceeding against E8 or any of its affiliates, officers, or agents. 15.6 Injunctive and Equitable Relief. Notwithstanding anything to the contrary, E8 shall have the right to seek injunctive or equitable relief in any court of competent jurisdiction to prevent actual or threatened unauthorized use, disclosure, or violation of its intellectual property, confidential information, or platform integrity. 15.7 Delay and Review Rights. E8 reserves the right to delay or defer arbitration or litigation proceedings at its discretion during internal investigations, compliance reviews, or pending related actions. No enforcement proceeding may be initiated without prior written notice.

16. REFERRAL AND INVITE A FRIEND PROGRAM 16.1 Program Overview. E8 offers a voluntary referral program (the "Referral Program") that allows registered users ("Inviters") to invite others to join the Platform. Participation in the Referral Program is subject to these Terms, including this Section, and may be modified or discontinued by E8 at any time at its sole discretion. 16.2 User-Initiated Invitations Only. All invitations must be personally initiated by you. When you submit an invitation, you confirm that: (a) You have a genuine pre-existing relationship with the intended recipient; (b) You have that person's permission to submit their email address for the purpose of sending a one-time platform invitation; (c) The recipient is not a current registered user of the Platform; (d) You are not using automated tools, bots, scripts, purchased email lists, scraped contact data, or CSV bulk-upload mechanisms to generate invitations. 16.3 One-Time Invitation; No Marketing Use. Invitation emails are sent on your behalf by E8 and constitute a single, one-time communication to the recipient. The recipient's email address is processed solely for the purpose of delivering that invitation. E8 will not add recipients to any marketing list, retarget them in advertising, or send follow-up emails unless the recipient independently registers and provides separate consent to receive communications. 16.4 Platform Credits for Referrals. Where the Referral Program offers platform credits as an incentive, the following rules apply: (a) Credits may be awarded solely to the Inviter upon the successful registration and qualification of a referred user, subject to eligibility requirements determined by E8 at its sole discretion; (b) Credits are non-monetary, non-transferable, and have no cash value. They may not be withdrawn, exchanged, or redeemed for cash or cryptocurrency; (c) Credits may only be used internally within the Platform for permitted purposes such as program fees, resets, or upgrades, as specified by E8; (d) E8 reserves the right to adjust, expire, or revoke credits at any time; (e) Credit awards are not communicated to invitees in invitation emails. Any incentive information is displayed exclusively within the Inviter's dashboard or account. 16.5 Affiliate Referral Collision. Where a new user is both referred by an existing E8 user through the Referral Program and has also been introduced through an affiliate link or discount code, the following priority rules apply: (a) The referral attribution from the Referral Program shall take precedence over affiliate attribution for the new user's first qualifying purchase; (b) The referring affiliate will not receive commission on that first order, as conversion is attributed to the referring Inviter; (c) The affiliate may continue to receive applicable commissions on the new user's subsequent orders (second order onwards) in accordance with the applicable affiliate agreement; (d) E8 reserves the right to make final determinations regarding referral and affiliate attribution in all cases. 16.6 Anti-Abuse and Program Integrity. E8 takes the integrity of the Referral Program seriously. The following conduct is strictly prohibited and may result in immediate forfeiture of all credits earned, suspension, or permanent termination of your account: (a) Submitting invitations to email addresses of persons you do not personally know or have no legitimate relationship with; (b) Self-referral, including creating secondary accounts or using third-party identities to generate referral credit; (c) Using automated tools, scripts, bots, or bulk contact upload to generate invitations at scale; (d) Circumventing daily or lifetime invitation limits imposed by the Platform; (e) Any attempt to game, manipulate, or exploit the credit system; (f) Coordinated referral schemes, multi-level reward structures, or pyramid-like referral chains. The Referral Program operates on a single-level basis only - you earn credits for users you directly invite, and no further levels of reward apply. 16.7 Invite Limits. E8 may impose daily and lifetime caps on the number of invitations a user may send. These limits are subject to change without notice and will be displayed within the Platform's referral interface. Attempts to circumvent invite limits constitute a violation of these Terms. 16.8 Eligibility and Qualification. An invitation is considered

'successful' only when the invited person completes the registration process, satisfies all applicable identity verification requirements, and meets any additional qualification criteria specified by E8 at the time of the referral. E8 reserves the right to determine whether a referral qualifies in its sole discretion, including in cases of suspected abuse or fraud. Credits are only unlocked after the referred user completes real qualifying activity on the Platform. 16.9 No Obligation to Continue. E8 makes no guarantee that the Referral Program will remain available, that credit structures or qualification criteria will remain unchanged, or that any particular referral will result in a credit award. E8 may modify, pause, or terminate the Referral Program at any time without prior notice. No vested rights in the Referral Program arise from prior participation. 16.10 Support and Dispute Resolution. If a referred friend does not appear in your referral list within the Platform, you should contact E8 support via the in-app chat (Profile -> Help -> Chat with us) and provide the friend's full name and registration email. E8 may manually review the account and, where the referral link click can be confirmed, link the referral at its discretion. E8's determination in all referral disputes is final. 16.11 Privacy of Invitees. The processing of invitee email addresses through the Referral Program is governed by E8's Privacy Policy. E8 processes such email addresses solely to deliver the one-time invitation and does not retain them beyond thirty (30) days if no account registration occurs. By submitting another person's email address, you represent that you have their permission to do so and that such submission complies with all applicable laws.

17. GENERAL PROVISIONS 16.1 Entire Agreement. These Terms, together with the Privacy Policy and any applicable ESPA, constitute the full and complete agreement between you and E8 with respect to the subject matter herein and supersede all prior and contemporaneous agreements, proposals, representations, warranties, or communications - whether oral or written - regarding the Platform. In the event of any conflict between the English language version of this Agreement and any translation hereof, the English language version shall prevail. 16.2 Severability. If any provision of these Terms is held to be invalid, illegal, or unenforceable under applicable law, that provision shall be modified to the minimum extent necessary to make it enforceable or severed from these Terms entirely, and the remainder shall remain in full force and effect. 16.3 Assignment. You may not assign or transfer your rights or obligations under these Terms without E8's prior written consent. Any attempted assignment in violation of this clause is null and void. E8 may assign this Agreement freely, in whole or in part, including in connection with a merger, acquisition, or corporate restructuring. 16.4 Force Majeure. E8 shall not be liable for any failure or delay in performance arising from acts beyond its reasonable control, including but not limited to acts of God, natural disasters, pandemics, cyberattacks, labor disputes, data outages, governmental actions, or interruptions in third-party services. 16.5 Waiver. No failure or delay by E8 in enforcing any provision of these Terms shall be construed as a waiver of its right to enforce such provision or any other provision in the future. Any waiver must be in writing and signed by an authorized representative of E8. 16.6 Relationship of the Parties. Nothing in these Terms creates any agency, partnership, joint venture, employment, or fiduciary relationship between you and E8. You agree that you are an independent participant and not an employee or representative of E8. 16.7 Headings and Interpretation. Section headings are for convenience only and shall not affect the meaning or interpretation of any part of these Terms. All references to "including" or "includes" are deemed to be followed by "without limitation." 16.8 Survival. Any provisions of these Terms that by their nature should survive termination, including but not limited to Sections on indemnification, limitations of liability, license grants, dispute resolution, and confidentiality, shall so survive.

18. THIRD-PARTY SERVICES AND WEBSITES 17.1 Bank Transfer Payments. E8 has partnered with financial services software company Aeropay to offer you ACH payments. When you create an E8 Account and connect a bank to complete ACH payments, you will be creating an Aeropay account. You authorize E8 to share your identifying information with Aeropay to open and support your E8 Account. You must also comply with Aeropay's Terms of Service when creating or using your E8 Account. The Aeropay Terms of Service may be modified from time to time, and the governing version is incorporated by reference into these Terms. Any term not defined in this section but defined in the Aeropay Terms of Service assumes the meaning as defined in the Aeropay Terms of Service. 17.2 Disclosure Prohibitions. E8 shall refrain from referring to Aeropay as any of the following: a bank, having or offering FDIC insurance, storing funds, or using any similar language that could misconstrue the nature of Aeropay's business. 17.3 User Authentication. E8 shall enforce, at a minimum, SMS 2-factor authentication for all users at the time of registration and when users change their number via Aeropay's Authentication or another vendor. If E8 does not require any Multi-Factor Authentication, then E8 must build

Aeropay's passwordless SMS 2FA for each transaction or participate in B2B transactions where MFA is not required. 17.4 Merchant and User Management. E8 shall provide complete and accurate data outputs to the best of its ability through commercially reasonable procedures. Data transmitted on consumers is defined as a user's first and last name (or business name), email, and phone number. Cell-phone numbers must be unique to the user. 17.5 Legal Compliance. E8 shall adhere and comply with all laws and regulations applicable to its business, products, and services, including, but not limited to, as applicable, all local age and verification requirements and any and all applicable licensing and registration requirements. E8 shall immediately notify Aeropay of any material changes in its product and shall subsequently submit an updated or new legal opinion that specifies such changes. E8 shall immediately notify Aeropay of any actions wherein a state or government agency has requested that it stop doing business in the state or otherwise taken material enforcement actions or proceedings against E8. 17.6 Brand Assets and Reference Materials. E8 shall make available Aeropay-provided reference materials in its app and/or website, including FAQs and marketing documentation, and shall include the Aeropay-provided package of brand assets in its products and/or services to ensure users understand Aeropay's involvement in their transactions. 17.7 Third-Party Services and Websites. The Platform may include links to, or integrations with, third-party services and websites. E8 does not control and is not responsible for the content, terms, privacy practices, or actions of any third party. Your use of any third-party service is governed by that third party's terms and policies.